IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, NAGPUR

Bail Application No. 312 of 2025 in FIR No. 214 of 2025, Police Station Sitabuldi

(Fictional sample case for demonstration)

Vikram Joshi, resident of Dharampeth, Nagpur ... Applicant (Accused)

versus

State of Maharashtra ... Respondent

Smt. Meena Rao ... Complainant (Intervenor)

APPLICATION FOR REGULAR BAIL UNDER SECTION 480 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

1. The Applicant was arrested on 18.03.2025 in FIR No. 214 of 2025 registered under Sections 318(4), 336(3) and 340(2) of the Bharatiya Nyaya Sanhita, 2023 (cheating, forgery for the purpose of cheating, and using a forged document as genuine).

2. The prosecution case is that on 12.02.2025 the Applicant took Rs. 3,20,000 from the Complainant by bank transfer, promising her son a clerk's post in the Central Railway, and later handed over an appointment letter which the Railway has confirmed is forged. The Complainant has produced the bank statement, WhatsApp chats with the Applicant and the letter.

3. The Applicant states that the amount was a hand loan for his travel business, that he never issued any appointment letter, and that the WhatsApp chats are edited. He offers to deposit Rs. 3,20,000 in Court without admitting liability.

4. The investigating officer has seized the Applicant's mobile phone. The forensic report on the phone and the handwriting expert's opinion on the letter are pending. Two other persons have given statements that they paid the Applicant for similar job promises in 2024.

5. The Applicant has no previous criminal record, is the sole earning member of his family, and has been in custody for 26 days. The prosecution opposes bail on the grounds that the Applicant may tamper with evidence and influence the two other witnesses.

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The Applicant prays to be released on bail on such terms and conditions as this Court deems fit.